

FORM No. 33

CHARGES

(See sections 234, 235 and 236)

I. CHARGES WITH ONE-HEAD

(1)(a) I,.....(*name and office of Magistrate, etc.*), hereby charge you.....(*name of accused person*) as follows:—

(b) On section 147.—That you, on or about the.....day of....., at....., waged war against the Government of India and thereby committed an offence punishable under section 147 of the Bharatiya Nyaya Sanhita, 2023 and within the cognizance of this Court.

(c) And I hereby direct that you be tried by this Court on the said charge.

(*Signature and seal of the Magistrate*)

[*To be substituted for (b)*]:—

(2) On section 151.—That you, on or about the.....day of....., at....., with the intention of inducing the President of India [*or, as the case may be, the Governor of(name of State)*] to refrain from exercising a lawful power as such President (*or, as the case may be, the Government*) assaulted President (*or, as the case may be, the Governor*), and thereby committed an offence punishable under section 151 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(3) On section 198.—That you, on or about the.....day of....., at....., did (*or omitted to do, as the case may be*) , such conduct being contrary to the provisions of.....Act , section....., and known by you to be prejudicial to....., and thereby committed an offence punishable under section 198 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(4) On section 229.—That you, on or about the.....day of....., at....., in the course of the trial ofbefore....., stated in evidence that “.....” which statement you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 229 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(5) On section 105.—That you, on or about the.....day of....., at....., committed culpable homicide not amounting to murder, causing the death of....., and thereby committed an offence punishable under section 105 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(6) On section 108.—That you, on or about the.....day of....., at....., abetted the commission of suicide by A.B., a person in a state of intoxication, and thereby committed an offence punishable under section 108 of the Bharatiya Nyaya Sanhita, 2023, and within the cognizance of this Court.

(7) On section 117(2).—That you, on or about the.....day of....., at....., voluntarily caused grievous hurt